

the dividends or interest, whatever the amount. If the parties return to England, and so come under the jurisdiction of the Court, the fund may then be brought over at the instance of the remainderman, and the tenant for life must submit to the consequential reduction of his income (*b*).

79. **Trust to invest in the funds and the money is retained.** — If trustees be *expressly* bound by the terms of their trust to invest in the *public funds*, and instead of so doing they retain the money in their hands, the *cestuis que trust* may clearly elect to charge them with the amount of the money or with the amount of the stock which they might have purchased with the money (*c*).

80. **Trustees ordered to invest in stock or on real securities and neglecting to do either.** — If trustees or executors be directed by the will to convert the testator's property and invest it in *Government or real securities*, it was long a question whether they should be answerable for the principal money with interest, or the amount of stock which might have been purchased at the period when the conversion should have been made with subsequent dividends, at the option of the *cestuis que trust* (*d*); or whether they [*336] should be charged with the * amount of principal and interest only, without an option to the *cestuis que trust* of taking the stock and dividends (*a*). It has now been decided that the trustee is answerable only for the *principal money and interest*, and that the *cestuis que trust* have no option of taking the stock and dividends. The principle upon which the Court proceeds is, that the trustee

(*b*) *Holland v. Hughes*, 16 Ves. 111; S. C. 3 Mer. 685.

(*c*) *Shepherd v. Moulds*, 4 Hare, 504, per Sir J. Wigram; *Robinson v. Robinson*, 1 De G. M. & G. 256, per Cur.; *Byrchall v. Bradford*, 6 Mad. 13, 235. And it has been said, that if a trust be of a permanent character, in which case the Court expects trustees to invest in Consols, though the settlement contains no express direction to that effect, trustees who improperly retain the funds in their hands may perhaps be held liable, at

the option of the *cestui que trust*, for the principal sum or the amount of stock which it would have purchased; *Robinson v. Robinson*, 1 De G. M. & G. 256, per Cur.

(*d*) *Hockley v. Bantock*, 1 Russ. 141; *Watts v. Girdlestone*, 6 Beav. 188; *Ames v. Parkinson*, 7 Beav. 379; *Ouseley v. Anstruther*, 10 Beav. 456.

(*a*) *Marsh v. Hunter*, 6 Mad. 295; *Gale v. Pitt*, M. R. 10th May, 1830; *Shepherd v. Moulds*, 4 Hare, 500; *Rees v. Williams*, 1 De G. & Sm. 319.